

appropriate as he pleased," with a recommendation to divide amongst certain persons (*j*), to divide and dispose of the savings (*k*), or the bulk of the property (*l*), or where the donee of the property had power to dispose of any part he pleased, whether expressly given him, or arising from implication, or from the nature of the subject (*m*). [So, where the testator gave all his property to his wife and expressed his "wish that whatever property his wife might possess at her death should be equally divided between his children," the wife was held to be absolutely entitled (*n*).] But where the recommendation was that the legatee, in case she married again, should settle what she possessed under the testator's will to her separate use, and should bequeath what she should die possessed of under the will in favour of [*135] certain * persons, it was held that the *whole* personal estate was overreached by the trust (*a*).

7. Whether trust or power, is a question of intention, not of grammatical import. — Where both objects and property are certain, yet no trust will arise, if the testator expressly declare that the language is not to be deemed imperative, or the construing it a trust would be a contradiction to the terms in which the preceding bequest is given (*b*); or if, all circumstances considered, it is more probable that the testator meant to communicate a mere discretion (*c*); or if a testator give an estate to a feme covert to be her sole and separate property, "with *power* to appoint to her husband or children" (*d*); or the testator at the same time declare that the

(*j*) *White v. Briggs*, 15 Sim. 33.

(*k*) *Cowman v. Harrison*, 10 Hare, 234.

(*l*) *Palmer v. Simmonds*, 2 Drew. 221.

(*m*) *Malim v. Keighley*, 2 Ves. jun. 531, *per* Lord Loughborough; and see *Knight v. Knight*, 3 Beav. 174; 11 Cl. & Fin. 513; *Huskisson v. Bridge*, 4 De G. & Sm. 245.

[(*n*) *Parnell v. Parnell*, 9 Ch. D. 96.]

(*a*) *Horwood v. West*, 1 S. & S. 387.

(*b*) *Webb v. Woolls*, 2 Sim. N. S.

267; *Huskisson v. Bridge*, 4 De G. & Sm. 245.

(*c*) *Bull v. Vardy*, 1 Ves. jun. 270; *Knott v. Cottee*, 2 Phill. 192; *Knight v. Knight*, 3 Beav. 148; *Meggison v. Moore*, 2 Ves. jun. 630; *Hill v. Bishop of London*, 1 Atk. 618; *House v. House*, W. N. 1874, p. 189; and see *Paul v. Compton*, 8 Ves. 380; *Knight v. Knight*, 3 Beav. 174; 11 Cl. & Fin. 513; *Lefroy v. Flood*, 4 Ir. Ch. Rep. 1; *Shepherd v. Nottidge*, 2 J. & H. 766; *Eaton v. Watts*, 2 W. R. 108.

(*d*) *Brook v. Brook*, 3 Sm. & Gif.